



Bharatiya Vidya Bhavan's

Sardar Patel College of Engineering

(Govt. Aided Autonomous Institute Affiliated to University of Mumbai)
Bhavan's Campus, Munshi Nagar, Andheri (West), Mumbai 400058.



NOTICE INVITING ARCHITECTURAL & DESIGN CONSULTANCY OFFERS

FOR

Name of Project: Construction of Hostel building at Bhavan's Campus for Sardar Patel College of Engineering and Sardar Patel Institute of Technology, in Bharatiya Vidya Bhavan's campus DN Nagar, Munshi Nagar, Andheri (W) Mumbai-400058.



Bharatiya Vidya Bhavan's
**SARDAR PATEL COLLEGE OF ENGINEERING &
SARDAR PATEL INSTITUTE OF TECHNOLOGY**
Munshi Nagar, Andheri (West), Mumbai – 400 058.



Expression Of Interest (EOI for Architectural Consultancy)

Sardar Patel College of Engineering and Sardar Patel Institute of Technology are two leading engineering institutions of Bharatiya Vidya Bhavan, at Andheri. Jointly, both institutes have planned the construction of Hostel of 1,50,000 sq.ft. Expression of interest is invited from renowned architects and firms to undertake this work. The details are available at our websites www.spit.ac.in and www.spce.ac.in

Sd/- PRINCIPAL

Sealed envelopes can be submitted to SPCE office (time 9.0 am to 5.0 pm)

Contact Person:

- 1) Dr. P. G. Gaikwad (9527310772) &
- 2) Prof. S. J. Kumbhar



Bharatiya Vidya Bhavan's
Sardar Patel College of Engineering
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Bhavan's Campus, Munshi Nagar, Andheri (West), Mumbai 400058.



NOTICE INVITING ARCHITECTURAL & DESIGN CONSULTANCY OFFERS

1. Sardar Patel College of Engineering and Sardar Patel Institute of Technology are engineering education institutes of Bharatiya Vidya Bhavan and are located at Bhavan's campus DN Road, Munshi Nagar, Andheri (West), Mumbai-400058. Both institutes have planned a joint hostel facility. Together, these institutes invite offers in sealed cover from the eligible Registered consulting "Architects / Architectural firms for providing Architectural Design consultancy & Liaison consultancy as per the detailed scope of work specified in the tender for the following work.

Name of Project: Construction of Hostel building at Bhavan's Campus for Sardar Patel College of Engineering and Sardar Patel Institute of Technology, in Bharatiya Vidya Bhavan's campus DN Road, Munshi Nagar, Andheri (W) Mumbai-400058.

BUILT UP AREA (BUA) of Proposed Construction: Apprx. 1,50,000 Sq.ft. (@14000 SQMT)

2. The applicant Consulting Architect / firms should have experience of similar architectural & liaison work consultancy of one work not less than 1,00,000 sqft in past 7 years and total work of not less than 5,00,000 sqft in past 7 years. At least one project executed must be from Mumbai Municipal Corporation (MCGM) jurisdiction, during the last seven years. The applicant should have experience of construction of hostels or similar residential complexes.
3. The applicant firm should have their registered office in Maharashtra preferably in Mumbai or Greater Mumbai jurisdiction; the Architect firm should be registered with the "Council of Architects". A copy of the current valid Registration Certificate should be submitted with the application.
4. The architect/architectural firm should have experience of project management of projects of similar scale or larger within Mumbai jurisdiction and should also have in-house facilities and staff to work on the same.
5. A. Job performance Certificate for completed works, list of works in hand with their status, built up area, cost of construction etc. details of in house facilities and the technical staff

employed with their curriculum vitae, details of other associate Architect Consultants etc. should be furnished with the application.

B. The Architectural firm should have in-house team of Registered Structural Engineers capable of designing RCC Structures having relevant experience and license of MCGM for designing up to 30 floors high rise Residential / Commercial / Educational buildings. The Architect / Structural Architect Consultant should have in house drawing & detailing experienced team of Draftsman and adequate knowledge & provisions of latest BIS & NBC codes with statutory requirements.

C. In case, the Architectural firms intends to hire Structural Architect Consultant as Associate from outside of his office, the Structural Architect Consultants firm should have adequate experience as stated in (b) above in designing similar works and has his office in Mumbai, should be registered & Licensed with MCGM Mumbai.

D. The Registered Liaison Architect / Liaison Associate of the Architectural firm should have his office in Maharashtra preferably in Mumbai, should have adequate experience in liaison work, should be time conscious, prepare & apply for approvals well in time, able to process, procure approvals and permissions on time or before time and should be registered with MCGM for liaison works & should have License to practice in MCGM jurisdiction.

The sealed offers duly filled in should reach to the office of Principal, SPCE, Andheri (W), Mumbai upto **2nd December 2025 up to 15.00 hrs.** Commercial / financial bids of the technically qualified Architect firms shall be opened on the suitable day and will be informed in advance to all the qualified bidders. The bidders are advised to keep technical and financial bids separately in the sealed envelopes.

6. The participant firms are advised to give all requisite information, documents demonstrating their eligibility, professional standing, technical manpower with the firm etc. in the Technical bids. Bidders need to provide their financial offer separately for (a) Architectural Design (b) Structural Design (c) Total Liasoning work with MCGM (from application to IoD to CC to OC) (d) total offer for (a+b+c).
7. SPCE & SPIT reserve the right to reject any or all the offers without assigning any Reason whatsoever. Neither those are bound to accept lowest offer. Institutions reserve the right to cancel this procurement of consultancy services at any stage or any time without assigning any reasons therefor.

Authorized signatory

SPCE/SPIT
Page 2 of 25

(Letter of submission by Architect Consultant)

From -

.....
.....
.....

To,

The Principal

SPCE/SPIT

Bhavan's College campus, DN Road, Munshi Nagar

Andheri (West) Mumbai – 400 058

Subject: Architectural Consultancy for - Construction of Hostel building for Sardar Patel College of Engineering as well as Sardar Patel Institute of Technology in Bharatiya Vidya Bhavan's campus DN Road, Munshi Nagar, Andheri (W) Mumbai-400058.

Dear Sir,

We have visited the site of work and examined it and its surroundings and collected all information that is necessary for proper assessment of the prospective assignment. We have gone through the terms and conditions of the tender and have understood the same.

- 1) We enclose herewith the following documents.
 - a) Copy of the Registration with Council of Architects & License to practice with covering letter (A1)
 - b) Curriculum Vitae of the technical staff employed like Architects, Structural Engineers, Draftsman, and other supporting staff (A2). The curriculum vitae of especially in-house Structural Engineers and other supporting liaison Architect etc. is also enclosed
 - c) List of works completed including copy of Occupancy certificate obtained with date of Commencement and completion (A3)
 - d) List of works on hand with present status (A4)

- e) List of associate firms for Electrical, HVAC, MEP, Liaison, Structural Designs, Drawings, Interior Design, MEP, Services Engineering, Landscaping, Design of IT infrastructure as well as data cabling, Design & Procurement of all IT active components, Office Equipment (copiers, coffee dispensers, etc.), Acoustics, Professional Quantity Surveyor Services, Topographical Surveys, Geotechnical advisors, Surveys, Traffic Management, Signage Design, Drainage, SWD, plumbing, Façade, Water supply, sanitary works, etc. (A5)
- f) The consultation fee quoted as percentage in clause 3.1.a and 3.1.2 shall be applicable to the project estimate amount for entire scope of works to be carried out including liaison work for which consultancy is provided and as defined by SPCE in the tender document.

Yours truly,

(Signature / Stamp of the Firm)

Note:- The Architect Consultant agency shall quote their rates / percentage in para 3.1a & 3.1.2 of this document.

SCHEDULE OF ACCOMODATION

SOA for Consultancy offer for the work of “Construction of Hostel building for SPCE and SPIT in Bharatiya Vidya Bhavan’s Campus, Munshi Nagar, Andheri (W) Mumbai-400058

DETAILS

Number of Buildings proposed for Development: 1 No Hostel G + 8 Floors

Proposed Total Built up area - 14000 SQM / 1,50,000 SQFT Approx.

Ground Coverage (Building Footprint) - 55 M X 30M (180’ X 98’) Approx.

Time allowed for the Project completion - 24 Months

(Including -Planning, Designing, tendering & building construction completion)

A G R E E M E N T

This agreement made on this _____ day of _____ between **SPCE and SPIT Bharatiya Vidya Bhavan's**, incorporated under the Indian Trust Act and having its Registered Office at Bharatiya Vidya Bhavan's Campus, DN Road, Munshi Nagar, Andheri (West) Mumbai -400 058 (hereinafter referred to as **Client / SPCE and SPIT/Employer**) which expression unless excluded by or repugnant to the context shall include their successors and assignees on the one part

And

M/s. ----- having their registered Office at -----
------(hereinafter referred to as Architect Consultant) which expression unless excluded by or repugnant to the context, shall include their successors and assignees of the other part.

Whereas the employer is desirous of undertaking Planning & Designing and Construction of Hostel building for Sardar Patel College of Engineering in Bharatiya Vidya Bhavan's campus DN Road, Munshi Nagar, Andheri (W) Mumbai-400058 accordance with the general requirements and conditions hereinafter appearing and whereas the Architect Consultant has agreed to perform the same.

The contract shall also be operated by the **Project Management Consultants M/s** **Pvt. Ltd** hereafter referred as **PMC** may be authorized by the Employer to perform all duties of Employer on his behalf. The Architect Consultants, Architects and Liaison Architects shall be performing their duties & obligation under this contract with the Employer through the authorized Project Management Architect Consultants M/s for timely and proper satisfactory completion of the project

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS

TERMS AND CONDITIONS OF AGREEMENT

1.0 DEFINITIONS

1.1 For the purpose of this agreement, the following words and expression shall have the

meaning hereby assigned to them except where the context otherwise requires: -

- i) “Approved” means approved by SPCE and SPIT / employer’s representative in writing including subsequent confirmation of previous approval.
- ii) “Employer” means the Sardar Patel College of Engineering and Sardar Patel Institute of Technology hereafter called as SPCE and SPIT which expression shall unless excluded by or repugnant to the context include employer’s representative. Including representative of PMC acting on behalf of SPCE and SPIT.
- iii) “Employer’s Representative” means Engineer / appointed PMC Engineer to act on behalf SPCE and SPIT (hereinafter called Engineers of SPCE and SPIT or any person authorized by him as designated in-charge of the work. (Please refer to Annexure – II)
- iv) “Architect Consultant” means Architect / Architect Design Consultant Firm or the representative appointed for the work under this contract

2.0 SCOPE OF WORK

2.1 Preliminary Stage

2.1.1. The services to be provided by the Architect Consultants shall interalia include the following: -

- a. Visiting the site, discussing details with the Employer, to carry out site survey, prepare site plan and site particulars of the entire plot of land showing all existing Buildings, other structures / features and services and facilities available.
- b. Preparing of preliminary drawings and designs etc. i.e. preliminary sketches, plans, elevations, sections and perspectives views, adequate to explain the general nature of the work with basic dimensions in Consultation with the Employer. (Please refer to Annexure – I also)
- c. Preliminary planning of all internal and external services like water supply, sewerage, storm water drainage, HVAC, acoustics, landscaping, development plans showing roads, paths, parks and paved areas, drains culverts, external

lighting indicating position of lifts, AC ducts and other conduits for services, fire fighting arrangements etc. complete. (Please refer to Annexure – I also)

- d. Brief outline – Preparing Design Base Report (DBR), General & specific Specifications & detailed working drawings.
- e. Preparation and submission of preliminary estimates of cost on plinth area basis, and on accepted norms as approved by the Employer and supported with quantities, details of measurements and rates along with the modified drawings if required in triplicate and obtaining approval of Employer.
- f. Preparation and submission of detailed estimates on accepted norms of as approved by the Employer and supported with quantities, details of measurements and rates along with the modified drawings if required in triplicate and obtaining approval of Employer.
- g. Obtaining the approval of the employer to b, c, d & e above and to any subsequent changes which the Architect Consultant will carry out on the advice of the employer, and computations of designs including structural designs, drawings and services design which shall be in accordance with all the relevant BIS codes of practice. (Please refer to Annexure – I also)
- h. The Architect Consultant shall provide in writing the name of his sub-consultants and sub-Architect Consultants for various services with their organization, qualification and experience and shall obtain prior approval of the Employer for the same. However, he only shall be fully responsible for the correctness and accuracy and timely deliverables of service / design prepared by such Sub-Architect Consultants and shall indemnify the employer against damage or loss caused due to negligence of sub- consultants, Sub-Architect Consultant.
- i. The proof checking of structural design and drawings shall be mandatory on the part of Architect Consultant / structural Engineer, all structural designs and drawings shall be got proof checked & approved from the Structural Engineering Department of Sardar Patel College of Engineering (Hereafter referred as SPCE) Bhavan's college campus Andheri (West) Mumbai. The structural Engineer / Architect Consultant shall cooperate & coordinate, provide all design data and liaison with the said Engineering College for seeking approval of the same.
- j. All Approvals shall be obtained by the Architect Design Consultant necessary for the

- i. commencement and completion of the project from Municipal Corporation of Greater
 - ii. Mumbai / IOD /Preliminary Fire proposal NOC/ Final Fire NOC / Commencement
 - iii. Certificate / all MCGM departments NOCs viz. Tree, SWD, Solid waste management,
 - iv. fitting, Plumbing, Aviation clearance site elevation, Lift License, HVAC NOC, Rain water
 - v. harvesting NOC etc. / approval of Amended drawings/ Extension of time for construction
 - vi. Revalidation approval of CC and any other approval not indicated here and activity from
 - vii. local authority
- k. Obtaining approval of all the competent authorities and other statutory
- i. bodies like Ministry of Environment and Forests, Civil aviation, Railways and
 - ii. local Development Bodies etc. as applicable and necessary according to the local Acts, Laws, Regulations etc. and make any changes desired by such authorities at no extra cost. The original documents of approval should be submitted to the employer.
 - 1. Obtaining commencement Certificate from local bodies for commencement of construction of the project.
 - 2. Obtaining NoCs from Chief Fire officer, Executive Engineer (Storm Water drainage), Executive Engineer (sewerage planning), Hydraulic Engineer, Insecticide Officer MCGM, Civil Aviation, Railways etc. or any other department as required for commencement of the project as per the requirement. Including obtaining water / sewer connection etc. covered in the scope of work.
 - 3. Submission of completion plans / as built drawings and obtaining part & full occupation as the case may be and finally obtaining completion certificate from the MCGM / local bodies.
- 2.1.2 Sub Architect Consultants for any and all services should also be available in-house. In case if it is not available the approval of SPCE to out-source / employ sub Architect Consultant shall be taken. The copy of the

agreement between sub-Architect Consultant and the Architect Consultant shall also be submitted to the Employer.

2.1.3 In case of disputes if any between the Architect Consultant & his sub-Arch, sub-consultant and in case if the full fees are not paid to the sub-Architect Consultant in time as per agreement between them, the Employer shall have the right to recover the amount payable to the sub-Architect / Consultant from the Architect Consultant's bills and make payment to the sub-Architect / Architect / Consultant.

2.1.4 Further to clause 2.1.3, the Employer, without prejudice, in case of dispute between the Architect Consultant and sub-Architect Architect Consultant, the employer shall keep the disputed amount in deposit till such time the dispute is resolved as per terms and conditions of the agreement drawn between the Architect Consultant and the sub-Architect Architect Consultant. The amount kept pending shall be released by Employer to the main Arch Consultant after obtaining the "No due certificate" from the sub-consultant or sub-Architect as the case may be.

2.2. WORKING DRAWING STAGE

Architect Consultant shall be responsible for Preparation of architectural drawings and preparing structural, Bar bending schedule service drawings including drawings showing the details of all the utility services such as water supply, sanitary, electrical installations, acoustic, air-conditioning, fire fighting, etc. internal and external, mentioned in various clauses of 2.1 above including details of specifications of all items of work. All the drawings and design calculations shall be made available by the Architect Consultant to the Employer in duplicate for checking and approval, which the Employer may like to exercise for scrutiny. However, the responsibility for the correctness and accuracy of the structural designs and safety of structure shall be entirely rest with Architect & Structural Architect Consultant (Please refer to Annexure – I also)

Obtaining approval of the employer in respect of items mentioned in clause (a) above and modifying them, if considered necessary by the Employer. Obtaining the approval of MCGM local and other authorities mentioned in various sub-clauses of Para 2.1 and making any changes & modifying the drawings to comply with mandatory requirements of Municipal authorities shall be the responsibility of the Architect and structural Engineer.

Preparation of complete working drawings to facilitate proper execution & approval of works, amended drawings, detailed shop drawings, joinery detailing, sectional detailing & details of part or full portions of any frame work, fixture or fitting, providing schedules, specifications and bill of quantities including those of various services in the manner prescribed by the employer to describe the part / whole project adequately and supplying details of calculations of such bill of quantities to enable the Employer to check them before preparation of tender documents by the Employer. Supplying free of charge required sets of approved bill of quantities along with drawings needed for tender purpose.

2.3. Execution / completion Stage

The Architect Consultant shall:

- a. Supply all the approved working drawings of Architectural and structural drawings, specifications and details in the manner required by the employer for proper execution of the work. (in total 5 sets of approved drawings shall be supplied free of charges to employer)
- b. Obtain Employer's approval for any material deviation in material, design, drawing or specifications.
- c. Shall inspect and certify correctness of the physical layout at site as per Municipal approved plans.
- d. Shall undertake periodical supervision and inspection as may be considered necessary to ensure execution of works in accordance with working drawings and specifications. Shall obtain commencement certificate at various stages according to local bodies bye laws during execution from the local bodies in such a manner that the work's progress should continue unhindered.
- e. Co-ordinate the various activities of his sub-Architect Consultants.
- f. To obtain necessary required completion certificates including drainage completion certificate, part / full occupancy certificate as may be required by the Employer.
- g. Shall certify final completion of the work and obtain all the required completion certificate / NOC's from various local Municipal Corporation of Greater Mumbai authorities and furnish to the Employer the building completion certificate along with five sets of completion plans / drawings and one set of reproducible drawings in A-1 size, and other connected documents. These

drawings will be in addition to drawings and details mentioned in above clauses.

- h. Architect consultant shall **prepare & submit 3 dimensional model** showing all features of the buildings as per approved, working drawings, plans and elevations to appropriate scale approved by Employer with colour scheme and finishes all as directed.
- i. MEP drawings (along with BIM), detailing shall be pre-conceptualized as per the approval of Employer and PMC shall be submitted & modified as per site conditions if required at the time of execution

3.0 PAYMENT OF REMUNERATION

3.1 The Employer agrees to pay to the Architect Consultant the following fee for the professional services to be rendered by him as hereinafter described in clause 2 and its sub clauses.

- a. Architectural Consultancy fee Lump sum quoted for the entire project scope (estimated cost of Civil and Electrical, interior, landscaping, firefighting, IT and other services etc. complete referred above for which consultancy is provided). The amount shall be exclusive of GST other applicable taxes.
- b. Fee payable above shall include Structural Engineering Architect Consultant fees for structural design, drawings, MEP, Liaison and coordination and seeking approval of SPCE for proof checking work also.
- c. One amendment to the drawings approved by statutory bodies shall be in the scope of the Architect consultants and the cost if any shall be borne by the architect design consultant. In case, after commencement of work, there is change in scope needing revised approval of local authority beyond one amendment already exhausted, the 2nd time revision after approvals; Architect Consultant shall submit additional remuneration if any within seven days of the order from Employer. However, the reasonableness of remuneration for such work shall be decided by Employer, which will be final and binding on the Architect Consultant.

- d. Any deviation in specifications, colour, pattern, design or modification & amendment from the assumed provisions & specifications in technically approved / sanctioned detailed estimate, during construction will not affect the fee. In the event of authorized changes in the scope of work leading to changes in BUA / plinth areas, above or below those assumed in the Schedule of Accommodation (SOA), the fee will be adjusted according to the increase / decrease in BUA areas and rates adopted at the time of approving original estimate.
- e. The above fees mentioned at clause 3.1.2 above shall be deemed to be exclusive of Goods & Service Tax (GST) and all other taxes applicable. Taxes payable shall be shown separately
- f. Fees quoted under clause 3.1.2 above shall be inclusive of fees payable to other Architect Consultants, sub-Consultants, Liaison Architects & to his in-house Or any other hired Architect Consultants & sub-Architect Consultant and / or associates needed to accomplish the job and nothing over & above extra whatsoever, shall be payable.

3.1.1. **EXCLUSIONS** - The cost of the following items **shall not be included** in the fees calculated for the purpose of working out Architect Consultant's fee: -

- a. Cost of Land including its development charges. However, fee on cost of pathways, landscaping and compound lighting, if designed by the Architect Consultant, shall be inclusive.
- b. Plans approval fee, Electrical service connection & deposits, Water supply deposits and any other fees payable to Municipal Corporation of Greater Mumbai (MCGM) / local and / or statutory bodies.
- c. Any other services, fittings and fixtures, which are not designed and planned by the Architect Consultant.
- d. Other contingent expenditure like – Expenditure to be incurred if any on Foundation stone inauguration ceremony of building etc.
- e. Escalation in the cost due to increase in rates of materials and labour, etc. after award of work, during construction & after completion of building construction works.

3.1.2 FEES PAYABLE (FIXED PRICE LUMP SUM)

NAME OF TENDERER:

ADDRESS

OF

TENDERER:

We hereby tender to provide all services, necessary to carry out the Architectural & Design Consultancy Services for the Proposed Hostel building for SPCE/SPIT Andheri (west) at Mumbai, subject to and in accordance with the Tender Documentation.

These fees are inclusive of all required meetings, workshops, reports, schedules, drawings, presentations, finishes boards, printing, travel, couriers' / postage costs, file transfers and consumables.

(Quote the amount in words and figures) Exclusive of Goods & Service Tax

Phased Fee Break up is attached on following page.

The fixed price lump sum shall hold good till completion of the project & not be subjected to variation, throughout the Contract Period, unless as provided for within the Agreement.

Signature of Principal Architect / Director / Architect / Firm of the Company

3.1.3 CONTRACT PRICE BREAK UP

The amount of fees will be paid in installments as specified below: - Payments to the Architect Consultant shall be “on account” treated as advances till final bill and shall be subject to adjustments for excess or less payments against the final bill. The various stages of payment shall be as follows: -

The percentage of fees payable shown is tentative, this is however, subject to further variation, revision and adjustable. SPCE is open for mutual discussion and adjustment of percentages with the Architect/ Design consultant who will be appointed / come on board. However, the SPCE will have the final say on the above and is binding on the Architect / design consultants

STAGE I

On getting the approval to drawings / designs from

- | | | |
|----|----------------------------|-------|
| a) | Client / Employer | 5% * |
| b) | The local authorities MCGM | 10% * |

(completion of clause * [% of the total fee payable on 2.1 and its sub-clauses) the basis of project estimate

i.e. after obtaining C.C. cost (cost of work)] at least up to plinth level.

STAGE II

On submitting working / 10 % of the total fee payable on detailed drawings, services the basis of cost of project estimate designs, detailed specifications (cost of work) and bill of quantities required to invite tenders (Completion of clause 2.2 and its sub-clauses) 10%

Note: - Payments made for Stage I & II work shall be deemed to be advance payments to be adjusted against the up-to-date payment against Stage-III.

STAGE III

On submission of complete set of Architectural and structural drawings and details required for (Cost of Civil work only) commencement of work at site the basis of project estimate

[as per Para 3.1 (a)]. 10% of the total fees

STAGE IV

During the course of construction the fees payable shall be in 4 equal installments each 5% consistent with the progress of the work as given below:

- | | | |
|-----|-------------------------|-----|
| i) | C.C. above plinth level | 05% |
| ii) | After 40% work is done | 05% |

- | | | |
|------|-------------------------------|-----|
| iii) | After 80% work is done. | 05% |
| iv) | After full work is completed. | 10% |

STAGE V

- | | | |
|----|---|------------------------------|
| a) | After Occupation
(Occupation Certificate | a) 35% of total fees payable |
|----|---|------------------------------|
- is obtained as per Para 3.1)

5.0. PERFORMANCE GUARANTEE

The successful bidder will be required to furnish Bank Guarantee from Nationalized / Scheduled bank by way of Performance Guarantee in the prescribed proforma (Please refer ANNEXURE III), for due fulfillment of the Contract, within 30 days from date of award of work for a sum equal to Rs.1,00,000/- (Rupees One Lac Only) or 5% of the consultancy fees as calculated vide 3.1 (a) whichever is less.

In case, the Architect Consultant fails to furnish the aforesaid performance Bank Guarantee within 30 days. SPCE / Client shall reserve the right to cancel the contract and no claim what so ever on this account shall be entertained.

The Performance Guarantee shall remain valid till completion of the work and the same shall be released after three months from the receipt of occupation certificate.

FORFEITURE OF PERFORMANCE GUARANTEE

In case the Architect Consultant fails to complete the work, SPCE / Client without prejudice to the rights and remedies available under the contract, shall forfeit and encash the Performance Guarantee Amount and credit it to SPCE account

In case the Bank goes in liquidation or for any reason is unable to make payment against the said Bank Guarantee the loss caused thereby shall be borne by the Architect Consultant. The Architect Consultant forthwith, on demand from SPCE, shall deposit the said amount, make good the deficit.

6. ADDITIONS AND ALTERATIONS

- a. The SPCE / Client / employer shall have the right to request in writing for changes, additions, modifications or deletions in the design and drawings or any part of the work and to request in writing additional work in connection there with

and the Architect Consultant shall comply with such request without claim of any extra cost.

- b. The Architect Consultant shall not make any deviations, alterations, additions to or omissions from the work shown / described and awarded to the Architect Design Consultant without approval of the SPCE / Client / Employer.

7. TIME SCHEDULE

1. The date of commencement of project will be reckoned from the 15th day of date of signing the agreement / work order or date of acceptance of offer whichever is earlier.
2. Completion of various activities as indicated in Para 2.1.1 (a to e) shall be carried out within ten weeks from the date of commencement of the project.
 - a. Approval of employer as per 2.1 (f) --- Four weeks.
 - b. Approval of all competent authorities MCGM (Clause 2.1.1 (g to h) Shall be obtained within eight weeks after 7.3(a)
 - c. CC above plinth - with in two weeks after completion of plinth.
3. Preparation of detailed / working drawings, preliminary structural design, load and moment calculations on foundations, determination of sizes of various structural members shall be done within six weeks after approval of preliminary drawings as at 2.1(f).
4. Bill of quantities for complete work to be executed shall be submitted within four weeks from the date of approval of detailed drawings.
5. The duly approved structural design and drawings shall be given within four weeks from the date of call of tender.
6. The work shall be carried out with all due diligence and as per time schedule specified above. In case of any delay / default, of the Architect Consultant to adhere to the agreed time schedule, (Decision of the SPCE / Client shall be final and binding) the SPCE / employer shall recover the liquidated damages from the Architect Consultant fees at the rate of 1% (one percent) of the total amount of fee payable per week of delay of any activity subject to a maximum of 10 (ten) per cent of the total fee payable.

8 EXTENSION OF TIME

1. To adhere to the above mentioned time schedule the Architect Consultant shall be provided on demand necessary documents,

information and certificates / undertakings by the Client / SPCE / Employer. Any delay in supplying the requisite documents and delay due to any other cause beyond the control of the Architect Consultant shall be considered for grant of extension of time. If the Architect Consultant requires extension of time, they shall intimate in writing to PMC / SPCE / Client / employer within 10 days of occurrence of such hindrance / delay.

2. The Employer after satisfying himself about the reasonableness of grounds, may grant extension of time as in his opinion be justified and communicate the same in writing (The decision of SPCE / Employer shall be final and binding) whenever such extension of time is granted it would be without prejudice to the rights of Employer. Any extension of time granted as stated above shall neither entitle the Architect Consultant to any claim for increase in their fees nor shall it release him from any of the obligations under the said agreement

9.0 **ABANDONMENT OF WORK**

- 9.1 That if the Architect Consultant abandons the work for any reason whatsoever or becomes incapacitated from acting as Architect Consultant as aforesaid, the Employer shall forfeit / encash the performance guarantee (Decision of Employer shall be final and binding). The employer shall be at liberty to make full use of all or any of the drawings prepared by the Architect Consultant. The Architect Consultant shall also be liable to refund all the fees paid to him up to date plus such damages as may be assessed by the employer (Decision of Employer shall be final and binding) subject to a maximum of 10% of the total fee payable to the Architect Consultant under this agreement including the recovery of liquidated damages under clause 7.7 hereinabove.
- 9.2 Provided, however, that in the event of the termination of the agreement / work order under proper notice as provided in the clause hereinafter, the Architect Consultant shall be liable to refund any excess payment made to him over and above which is due to him in accordance with the terms of this agreement, for the services rendered by him till the date of termination of agreement

10 SUPPLY OF DRAWINGS AND COPY- RIGHT

1. All the estimates, bill of quantities, detailed designs with calculations, and any other details envisaged under this agreement shall be supplied in triplicate. All architectural drawings and details of services utilities (internal and external) shall be supplied by the Architect Consultants per requirements of local bodies and other authorities. The Employer shall be supplied with five sets of such drawings along with one reproducible copy in A-1 size. If there is any revision of any detail in any drawing for any reason what so ever, same number of drawings shall be reissued after such corrections without any extra charges. The Architect Consultant shall submit required number of sets of completion drawings and other details to local authorities and obtain completion certificates. Four sets of drawings and other details of completion plans shall be supplied to the Employer along with a Soft copy of entire project.
2. All these drawings shall become the property of the Employer and he shall have the right to use the same anywhere else. In that event, the Employer shall pay a royalty to the Architect Consultant on mutually acceptable basis. Such drawings and designs shall not be issued to any other person, firm or authority or used by the Architect Consultant for any other project. No copies of any drawings or documents shall be issued to any one except the Employer and / or his authorized representatives.

11 DETERMINATION AND RESCISSION OF AGREEMENT

1. The employer without prejudice to its right against the Architect Consultant in respect of any delay by notice in writing absolutely determine the contract in any of the following cases: -
 - a. If the Architect Consultant, being a firm / company shall pass a resolution or the court shall make any order that the firm / company shall be wound up or if a receiver or a manager on behalf of the creditor shall be appointed or if circumstances shall arise which entitle the court to appoint a receiver of a manager or which entitles the court to make up a winding order.

- b. If the Architect Consultant commits breach of any of the terms of agreement / work order.
- c. When the Architect Consultant has made himself liable for action under
 - i. Any of the clauses aforesaid, the Employer shall have powers: -
 - ii. To rescind the Contract / agreement.
 - iii. To engage another Architect Consultant to carry out the balance work debiting the Architect Consultant the extra amount, if any, so spent for getting the balance work done. This amount would be in addition to the recovery of liquidated damages under Clauses 7 and 8 herein above.

12.0 **GENERAL**

- 12.1
 - i) The Architect Consultant shall be fully responsible for the technical soundness of the work including those of specialists, experts, consultants, sub-consultants and Architect Design Consultants & sub-Architect Design Consultants engaged if any, by him and also ensure that the work is carried out generally, in accordance with drawings, specifications and his conception.
 - ii) The employer will have the right to get proof check work at Architect Consultant and / or his sub-Architect Consultants supervised / inspected at any time by any officer check estimates and designs.
 - iii) The appointment of Employer's own supervisory staff or PMC if any does not absolve the Architect Consultant of his responsibility of general supervision. The Architect Consultant shall be responsible for designs of structures and all provisions / services of the work entrusted to him so as to satisfy their requirements.
- c. The Architect Consultant hereby agrees that the fee to be paid as provided herein (clause 3) will be in full discharge of functions to be performed by him and no claim whatsoever shall be made against the Employer in respect of any proprietary

rights or copy right on the part of any other party relating to the plans, models and drawings.

v)) The Architect Consultants shall indemnify and keep indemnified the employer against any such claims and against all cost and expenses paid by the Employer in defending himself against such claims.

vi) The Architect Consultant here by agree that the Employer shall have

the right to take out any of the activities, which in opinion of the Employer is not being performed by the Architect Consultant with due diligence and within the agreed time schedule and which can be performed independently. The cost of which if any along with fees or the expenses incurred shall be debited to the account of Architect Consultant.

13.0 DISPUTES & CLAIMS – MEDIATION AND ARBITRATION

1. MEDIATION: 1st solution

All disputes or differences whatsoever arising between the parties out of or relating to the consultancy work under this contract, the Design consultant & his scope related to construction, meaning and operation or effect of this contract or the breach thereof shall be referred & applied in writing to the Principal SPCE for appointment of the Mediator as 1st remedy for settlement of disputes and differences by – mediation, under Indian Mediation Act 2023 a time-bound procedure. A mediator an individual qualified to act as mediator appointed by The Principal SPCE a mediator with the Mediation Council of India, a senior professor, senior faculty or a senior officer of SPCE. for settlement of disputes arising out of this contract, the entire process of mediation should be completed within 120 days (which may be extended to 180 days) from the date of first appearance of the parties before the mediator. Mediator authorized to settle disputes and can encompass issues beyond those originally referred to mediation.

A party can withdraw from the mediation after communicating its intention to withdraw to the party(ies) of the mediation and the mediator, in writing. The mediator, parties to mediation and participants are required to maintain confidentiality regarding mediation proceedings. The mandate of a mediator can be terminated in the event of (i) the mediator withdraws from the mediation; (ii) the mediator has a conflict of interest; or (iii) any party to the dispute applies to the Principal SPCE for replacement of the mediator

subsequent to disclosures made by the mediator. In case, parties do not reach a settlement through mediation, the mediator prepares a non-settlement report, withholding specific details or reasons, and submits it to the parties and the Mediator appointing authority / Principal SPCE and seek further remedy for settlement of disputes claims and differences under the Indian Arbitration Act 1996

A mediated settlement agreement can be challenged on the limited grounds of fraud, corruption, impersonation, or if the dispute was not fit for mediation under the Act. Either party involved in mediation can challenge the agreement within 90 days from the date of receiving it. If the court or tribunal finds that the applicant had a valid reason for not applying within the initial 90day period, it may extend the time by an additional 90 days.

2. ARBITRATION: Except OR otherwise expressly provided in the contract all or any questions, differences claims and disputes relating to the meaning of specifications, designs, drawings and instructions herein before mentioned and as to the drawings, details, shop drawings, designs, patterns, quality of workmanship or materials used / to be used on the work or as to any other question claim, right, breach, matter or thing whatsoever in any way arising out of or relating to this contract / tender documents, designs, drawings, specifications, estimates, instructions, order, conditions, meaning and operation or effect of the contract or breach thereof or otherwise concerning the works or the execution or failure to execute same whether arising during the progress of work or after the completion or abandonment thereof shall be referred to the sole arbitration of the person appointed by the Principal, SPCE, Andheri (W), Mumbai. It will be no objection to any such appointment that the arbitrator so appointed is a Government / Semi-Government / Private or from the Empaneled list of Arbitrators Or a senior officer, professor, faculty of SPCE who is absolutely not connected / has no relation with the project, that he had to deal with the matters to which the contract relates and that in the course of his duties as Government / Private Or from the Empaneled list of Arbitrators Or senior officer, professor, faculty of SPCE has expressed views on all or any of the matters in dispute, or difference. The arbitrator to whom the matter is originally referred being transferred or vacating his office or being unable to act for any reason, at the time of such transfer or vacation of the office or inability to act the Principal SPCE as aforesaid at the time of such transfer, vacation or inability to act, shall appoint another person to act as an arbitrator in accordance with the terms of the contract. Such person shall be entitled to proceed with the reference from the stage at

which it was left by his predecessor. It is also a term of this contract that no person other than the person appointed by such Principal SPCE, Andheri (W), Mumbai, as aforesaid should act as an arbitrator. In all cases the arbitrator shall give reason for the award. The award of the arbitrator shall be final and binding on both the parties to the agreement. The provisions of Indian Arbitration and Reconciliation Act, 1996 or any relevant statutory modification or re-enactment thereof and the rules made there under and for the time being in force shall apply to the arbitration proceedings under this clause. It is a term of the contract that the party invoking arbitration shall specify the dispute or disputes to be referred to the arbitration under this clause together with the amount or amounts claimed in respect of each such dispute. If the Architect Design Consultant does not make any demand for arbitration in respect of any claim(s) in writing to Principal SPCE, Andheri (W), Mumbai within 90 days of receiving the intimation for furnishing the reasons, details of claims, damages support of documents if any for admissibility of claims or after receipt of intimation that the claim or invoice / bill is ready for payment and he is requested for acceptance, then the claim of the Architect Design Consultant(s) will be deemed to have been waived and absolutely barred and the SPCE shall be discharged and released of all liabilities under this contract in respect of this claims. Arbitrator(s) may from time to time with the consent of both the parties enlarge the time for making and publication of the Arbitration Award. Subject to the aforesaid Arbitration and Conciliation Act 1996 and the rules made there under, any modification thereof for the time being in force shall be deemed to apply to the arbitration proceeding under this rule.

2.1 The venue of the arbitration proceeding shall be SPCE/SPIT, Bhavan's campus Munshi Nagar Andheri(west) Mumbai or such other places as the arbitrator on board may decide

In witness whereof the parties hereto have set their hands and seals the

..... day of
.....2025

ARCHITECT DESIGN CONSULTANT

SPCE/SPIT

ANNEXURE - I

SALIENT FEATURES OF CONSULTANCY WORK

1. PRELIMINARY DRAWINGS: shall provide

- a. The site plan shall be in 1:200 scale and remaining drawings like floors and terrace plans, elevations and sections etc. shall be in the scale 1:100.
- b. Minimum Two sections shall be prepared. One section through staircase/Lift pits and another as general section. Sections needed to indicate all special features in addition to these two sections.
- c. Brief specifications to be followed for preparing preliminary estimates shall be finalized in consultation with SPCE

2. ARCHTECTURAL WORKING DRAWINGS: Shall provide

- a) All floors plan, terrace plans, elevations and wall sections shall be in Scale 1:50.
- b) Plans and sections of toilets, pantry, fixtures, like counters, flooring, tiles etc. shall be in Scale 1: 25.
- c) Full / half scale for details of doors, windows, grills etc. including their fixing arrangements, shall be supplied.
- d) Large scale details of special areas like floor tile patterns, features, reflected ceiling plans should also be supplied if needed.
- e) Plans, elevations, sections and other details of fixed furniture Scale 1:25. shall be supplied.
- f) Details of MEP drawings shall be in 1:25 for HVAC, Plumbing, Electrical circuits etc
- f) Internal elevations (where required) shall be supplied.

- g) Landscape plans and details including parking planters, roads, horticulture site drainage, sewerage and lighting details and of other underground services required on approved scale be supplied.
- h) Internal and external services drawings like sewerage, water supply and storm water drainage scheme as per BMC norms be on approved scale, Typical fixture arrangement details shall be on scale 1: 25.

3. STRUCTURAL ANALYSIS AND STRUCTURAL DRAWINGS: Shall provide

- a) As per preliminary drawings, tentative structural arrangement of the structure shall be decided in consultation with SPCE, leading to preparation of working drawings. Due consideration shall be given in deciding separation joints from seismic consideration as per IS:4326 and other relevant codes.
- b) Analysis and design of the structure on the basis of approved working drawings shall be done on the latest software package of E-TAB / STAAD III or approved equivalent. However, provisions in various latest BIS Codes namely IS 456, IS 1893 (Draft Code) IS 4326, IS 13920, SP:34 etc. shall be over riding the package's output.
- c) Structural drawings showing reinforcement detailing and Bar Bending Schedule shall be prepared as per latest SP:34 (S&T) from BIS and in consultation with SPCE. All over riding conditions prescribed by IS 13920 /IS 1893 part 1:2002 using importance factor of 1.5 for all types of buildings or by any other BIS Code, directions of the SPCE shall be taken into account while preparing structural drawings.
- d) Submit the offer in 3 different packets of offer individually for the items as mentioned below:
 - i) Architectural design and drawing.
 - ii) Structural Design and drawing.
 - iii) Total Liaisoning for the project.
- e) SPCE/SPIT reserves the right to accept or reject any or all bid documents.

ARCHITECT CONSULTANT

SPCE/SPIT